STATE OF ARKANSAS

DEPARTMENT OF SHARED ADMINISTRATIVE SERVICES
OFFICE OF STATE PROCUREMENT
501 Woodlane St., Ste. 220
Little Rock, Arkansas 72201-1023

REQUEST FOR PROPOSAL

SOLICITATION DOCUMENT

SOLICITATION INFORMATION			
Solicitation Number:	S000000479	Solicitation Issued:	April 13, 2026
Description:	Pharmacy Services for Human Development Centers (HDCs)		
Department:	Department of Human Services (DHS), Division of Developmental Disabilities Services (DDS)		

PROPOSAL DUE DATE AND SUBMISSION OF RESPONSE DOCUMENTS			
Proposal Due Date:	May 4, 2026	Time:	3:00 pm, Central Time
Proposal submissions for this Request for Proposal **must** be submitted through ARBuy, the State's eProcurement system, by the Proposal Due Date and Time. Proposals received after the Proposal Due Date and Time will be rejected as untimely. ARBuy can be accessed at arbuy.arkansas.gov.			

LIVE PROPOSAL OPENING INFORMATION	
Teams Meeting Link:	**Join the meeting now**
Meeting ID:	222 772 062 036 1
Passcode:	bk7B7hj9
Call in (audio only):	501.244.3310 or find a local number

SAS OFFICE OF STATE PROCUREMENT CONTACT INFORMATION			
SAS OSP Procurement Specialist:	Kimberly Haywood	Procurement Specialist's Direct Phone Number:	501-683-2222
Email Address:	Kimberly.Haywood@arkansas.gov	SAS OSP's Main Number:	501-324-9316
SAS OSP Website:	sas.arkansas.gov/procurement/		

SECTION 1 – GENERAL INFORMATION AND INSTRUCTIONS

1.1 INTRODUCTION

This Request for Proposal (RFP) is issued by the SAS Office of State Procurement (SAS OSP) for the Arkansas Department of Human Services ("DHS" or "Department") to obtain pricing and a contract(s) for pharmaceutical deliveries and services at the five (5) Human Development Centers (HDCs) located throughout the State of Arkansas.

Contract will be awarded to the Prospective Contractor determined to have submitted the proposal that is the most advantageous to the State. Direct all questions, comments, or concerns regarding this solicitation to the SAS OSP, not the Department.

1.2 TYPE OF CONTRACT

A. As a result of this RFP, SAS OSP intends to award a contract to a single Contractor.

B. The anticipated starting date for any resulting contract is July 1, 2026, except that the actual contract start date may be adjusted unilaterally by the State for up to three (3) calendar months. By submitting a signed proposal in response to the RFP, the Prospective Contractor represents and warrants that it will honor its proposal as being held open as irrevocable for this period.

C. The initial term of a resulting contract will be for four (4) years. Upon mutual agreement by the Contractor and Department, the contract may be renewed by SAS OSP for up to three (3) additional one-year terms or portions thereof, not to exceed a total aggregate contract term of seven (7) consecutive years.

1.3 DEFINITION OF TERMS

A. Unless otherwise defined herein, all terms defined in Arkansas Procurement Law have the same meaning herein.

B. "Prospective Contractor" means a responsible offeror who submits a proposal in response to this Solicitation.

C. The terms "Request for Proposal," "RFP," and "Solicitation" are used synonymously in this document.

D. "Requirement" means a term, condition, provision, deliverable, Specification, or a combination thereof, that is obligated under the Solicitation, resulting contract, or both.

E. "Responsive Proposal" means a proposal submitted in response to this Solicitation that conforms in all material respects to this RFP.

F. "**Shall**" and "**must**" mean the imperative and are used to identify Requirements.

G. "Specification" means any technical or purchase description or other description of the physical or functional characteristics, or of the nature, of a commodity or service. "Specification" may include a description of any Requirement for inspecting, testing, or preparing a commodity or service for delivery.

H. "State" means the State of Arkansas. When the term "State" is used herein to reference any obligation of the State under a contract that results from this Solicitation, that obligation is limited to the Department using such a contract.

1.4 SOLICITATION SCHEDULE

For informational purposes, SAS OSP is providing a Solicitation Schedule; however, dates listed and noted with an asterisk (*) are anticipated dates only and are subject to change at the discretion of the State. All times are listed in Central Time.

TABLE A: TENTATIVE SOLICITATION SCHEDULE

ACTIVITY	DATE
Deadline for Prospective Contractor Questions	April 17, 2026
Answers to Questions Posted to ARBuy*	April 24, 2026
Proposal Due Date	May 4, 2026
Initial Proposal Evaluation*	May 6, 2026
Interviews*	May 11 – 12, 2026
Final Proposal Evaluation*	May 12, 2026
Discussions Kick Off Meeting*	May 19, 2026
Finalize Discussions*	June 9, 2026
Post Anticipation to Award*	June 22, 2026
Award Contract*	July 1, 2026

1.5 CLARIFICATION OF SOLICITATION

A. Submit questions requesting clarification of information contained in this Solicitation via the Solicitation posting in ARBuy by the date and time listed in Table A.

1. For each question submitted, Prospective Contractor should reference the specific Solicitation item number to which the question refers, as applicable.

2. Prospective Contractors' written questions will be consolidated and responded to by the State as deemed appropriate. The State's consolidated written response is anticipated to be posted to the Solicitation posting in ARBuy by the close of business on the date provided in Table A. If Prospective Contractor questions are unclear or non-substantive in nature, the State may request clarification of a question(s) or decline to answer.

B. The Prospective Contractor should notify the SAS OSP Procurement Specialist of any Requirements that precludes the Prospective Contractor from submitting a Responsive Proposal.

C. Prospective Contractors may contact the SAS OSP Procurement Specialist with non-substantive questions at any time prior to the proposal opening.

D. An oral statement by SAS OSP will not be part of any contract resulting from this Solicitation and may not reasonably be relied on by any Prospective Contractor as an aid to interpretation unless it is reduced to writing and expressly adopted by SAS OSP.

E. Only an addendum written and authorized by the State will modify the Solicitation.

1.6 RESPONSE DOCUMENTS

A. All proposal responses **must** be submitted through ARBuy, the State's eProcurement system. The system can be accessed at arbuy.arkansas.gov.

1. Prospective Contractors **must** be registered in ARBuy to submit proposals responses.

B. *Technical Proposal Packet*

1. Prospective Contractors **shall** utilize the *Technical Proposal Packet* to submit their responses.

2. The following items are proposal Submission Requirements and **must** be submitted as part of a Prospective Contractor's proposal response.

a. Signed *Proposal Signature Page*; signature may be ink or digital.

b. Technical Proposal response to the *Information for Evaluation* section included in the *Technical Proposal Packet,* which **must** be in the English language.

c. Completed *Official Solicitation Price Sheet* attached to the Solicitation in ARBuy.

d. *Recommended Options Form*

i. The *Recommended Options* form included in the *Technical Proposal Packet* allows Prospective Contractors to identify any recommended options or optional service ideas that may benefit the State that were not included in the Requirements and the proposed solution.

e. Copy of Prospective Contractor's *Equal Opportunity Policy*

i. Pursuant to Arkansas Code Annotated § 19-60-104, OSP requires a Prospective Contractor bidding on a state contract to submit a copy of the Prospective Contractor's *Equal Opportunity (EO) Policy*.

ii. Prospective Contractors not required by law to have an *EO Policy* **must** submit a written statement to that effect.

f. Proposed *Subcontractors Form* (see SRV-1, section 14)

3. The following items, which **must** be submitted prior to a contract award to the Prospective Contractor, may also be included with the Prospective Contractor's proposal:

a. *EO 98-04: Contract and Grant Disclosure Form* (see SRV-1, section 11)

b. *Voluntary Product Accessibility Template* (VPAT), if applicable

4. Prospective Contractors should not include any other documents or ancillary information, such as a cover letter or promotional/marketing information.

C. Redacted copy of the *Technical Proposal Packet*

1. One (1) redacted (marked *Redacted*) copy of the Prospective Contractor's proposal response (see *Proprietary Information*), if applicable.

D. Prospective Contractors should not alter language in Solicitation document(s) or *Official Solicitation Price Sheet* provided by the State.

E. Prospective Contractor's proposals cannot be altered or amended after the proposal opening except as permitted by law or rule.

F. Prospective Contractors may submit multiple proposals.

1.7 SUBCONTRACTORS

A. Contractor **must** complete and submit the Proposed Subcontractors Form included in the *Bid Response Packet* to indicate Contractor's intent to utilize, or to not utilize, subcontractors. Identify the service(s) that will be provided by each subcontractor under the resulting contract on the Proposed Subcontractors Form where indicated. Do not attach any additional information to the Proposed Subcontractors Form.

B. Additional subcontractor information may be required or requested in following sections of this *Bid Solicitation*. **Do not** attach any additional information to the *Proposed Subcontractors Form*.

C. Upon DHS request, Contractor **shall** provide a copy of the subcontractor's agreement or scope of work.

D. The utilization of any proposed subcontractor is subject to approval by the State agency. DHS reserves the right to request removal of a subcontractor, for any reason, upon written notice to the Contractor.

1.8 PRICING

A. Pricing **must** include all tasks and activities required to provide all services required by this *Bid Solicitation* and under a resulting contract, including without limitation transitional activities.

B. Any cost not identified by the Contractor but subsequently incurred in order to achieve successful operation **shall** be borne by the Contractor.

C. Quantities stated are estimates only and are not guaranteed. Prospective Contractor **must** bid unit price on the estimated quantity and unit of measure specified.

D. The State may order more or less than the estimated quantity on term contracts, and the Contractor **shall** sell to the Department quantities ordered at no more than the bid price.

E. Prices **must** be firm offers. Price increases may be considered at the time of contract renewal only if the request for an increase is submitted in writing to DHS and the DHS Office of Procurement (OP) at least six (6) months prior to contract renewal with accompanying justification.

   1. The accompanying justification **must** demonstrate that the increase in price is based on unforeseen circumstances not considered in the initial bid, is based on an increased cost to Contractor, and the proposed pricing is competitive in the marketplace. DHS **shall** have the right to require additional information pertaining to the requested increase.

   2. Increases will not be considered to increase profit or margins.

   3. DHS **shall** have the right to approve or deny the request.

SECTION 2 – REQUIREMENTS

2.1 BACKGROUND AND CURRENT ENVIRONMENT

The HDC's are Intermediate Care Facilities for individuals with intellectual disabilities (ICF/IID), they operate on a full-time basis, 365 days per year, with total care available 24 hours per day.

There are currently five (5) HDCs:

Human Development Center Location	Licensed Bed Capacity	Functional Bed Capacity
Arkadelphia Human Development Center 1 Prator Drive Arkadelphia, AR 71923-0070	125	110
Booneville Human Development Center 87 Reed Road Booneville, AR 72927	138	128
Conway Human Development Center 150 E. Siebenmorgan Road Conway, AR 72032	518	450
Jonesboro Human Development Center 4701 Colony Drive Jonesboro, AR 72401	109	106
Southeast Arkansas Human Development Center #1 Center Circle Warren, AR 71671	100	96

The historical data below is a current estimate of our unique members and pharmacy services medication disbursement for the Conway Human Development Center. This data is for informational purposes only.

Conway Human Development Center Historical Data			
Category	**CY 2025**	**CY 2024**	**CY 2023**
# of Unique Member	464	458	471
# of Medications	39,952	40,962	40,057
# of OTCs	22,483	24,226	23,111
Total Amount	200,690	224,729	205,356

2.2 OBJECTIVE AND GOALS

The Department is seeking to procure a Contractor who will provide the following:

- **Services:** Provide comprehensive pharmacy services that ensure safe, effective, and individualized medication delivery and management for HDC residents.
- **Medication Safety & Accuracy**: Implement rigorous systems for ordering, dispensing, delivering, and monitoring medications to minimize errors and adverse drug events in collaboration with each HDC's on-site medical team.
- **Innovation:** Incorporate technology such as electronic medication administration records (eMAR), telepharmacy, and data analytics to improve service delivery and oversight that will interface with the State's current Electronic Health Record (EHR) system used at all HDCs.

2.3 PROSPECTIVE CONTRACTOR MINIMUM QUALIFICATIONS

A. The Prospective Contractor **shall** have a Pharmaceutical License issued by the Arkansas State Board of Pharmacy and be authorized to dispense medication in the State of Arkansas. For verification purposes, Prospective Contractor **must** provide a copy of the license prior to award.

B. The Prospective Contractor **shall** have a minimum of five (5) years experience in dispensing pharmaceuticals in long-term care facilities.

C. The Prospective Contractor **shall** be registered to do business in the State of Arkansas and in good standing by the initial start of any resulting contract., Upon DHS Request, Contractor **shall** provide a Certificate of Good Standing, Certificate of Authority, other required Arkansas Secretary of State documentation such as non-filing or nonqualifying statements.

2.4 GENERAL REQUIREMENTS

A. The Contractor **shall** comply with all requirements of governmental agencies that license, certify, or regulate the HDCs. This **mus**t include but is not limited to labeling all medications and providing the necessary equipment required to implement a medication administration system that complies with all applicable intermediate care facility statutes and regulations.

B. The Contractor **shall** be subject matter expert regarding the Medicaid Formulary/Preferred Drug List.

C. The Contractor **shall** make recommendations to the prescriber if prescriptions are not currently covered by Medicaid or primary insurance.

D. The Contractor **shall** set pricing for prescription items not covered by insurance at the National Average Drug Acquisition Cost (NADAC) rate or lower.

E. The Contractor **shall** review all medications submitted for applicable generics/most cost-effective routes.

F. The Contractor **shall** provide routine medications as well as have a system, pre-approved by DHS, in place for floor stock medications, as needed Pro re nata (PRN) medications, and emergency/urgently needed medications.

2.5 PHARMACY SERVICES

A. The Contractor **shall** provide pharmacy services for HDCs as described in the RFP.

B. The Contractor **shall** maintain accurate counts of prescriptions and over-the-counter (OTC) pharmaceuticals dispensed and maintained in inventory.

C. The Contractor **shall** check medication lists for allergies and medication interactions, especially when new medications or medication changes are ordered.

D. The Contractor **shall** provide a DHS approved system for checking medications in inventory for accuracy of blister packs/bottles.

E. The Contractor **shal**l provide a bar-code system in the pharmacy to reduce medication dispensing errors and improve the accuracy of ordering and receiving medications.

F. The Contractor **shall** provide a DHS approved medication distribution system utilizing a cycle delivery for all routine oral dosage forms on a thirty (30) day cycle that complies with all applicable laws and regulations.

G. The Contractor **shall** provide a method for medication management for HDC resident home visits.

H. The Contractor **shall** have a blister pack system for unit dose medication dispensing that complies with all applicable laws and regulations. This is the preferred method for both prescription and OTC medications. However, it is understood that not all medications will be provided in a blister pack delivery system for a variety of reasons. The Contractor **shall** notify the HDC when it is anticipated that blister packs cannot be used and provide an alternative DHS security-approved packaging system for pill forms.

I. The Contractor **shall** dispense scheduled and OTC medications for treatment of HDC residents as ordered by a Doctor of Medicine or other health care professional, who is duly licensed and qualified under the laws of this jurisdiction to prescribe:

1. OTC medications include, without limitation, diabetic test strips and/or any diabetic supplies.

2. Prescription containers (including blister packs) **shall** be labeled to include the individual's name, date, prescribing physician, medication name, lot number, strength, dosage, directions for

administration, and any applicable warnings or dietary instructions or other information in compliance with federal regulations and the laws of the State of Arkansas.

J. Medication orders **must** be dispensed for thirty (30) days, unless prescribed for a lesser amount of time, in a blister packaging system or alternative DHS security-approved packaging system for pill forms.

K. Liquid medications, including vaccines, **must** be manufactured, and bottled for pharmacy use and **must** bear the contracting pharmacy's label.

L. The Contractor **shall** be able to provide compounded medications or arrange orders with another provider.

M. Except for medication carts, the Contractor **shall** be responsible for provision of equipment necessary for the provision of pharmacy services.

N. The pharmacy **shall** provide Schedule II Narcotics in accordance with General Regulation 7-04: Controlled Substances and any successor regulations, as amended.

O. The pharmacy **shall** provide Off Cycle medications including, but not limited to, therapeutic and new admission short cycle medications.

2.6 PRIOR AUTHORIZATIONS (PA)

A. The Contractor **shall** provide a clear and concise system of documentation to process prior authorizations of medications.

B. The Contractor **shall** coordinate with the HDC medical staff located at each individual HDC, to gather information needed for prior authorization.

C. The Contractor **shall not** provide medication that requires a Prior Authorization from the resident's primary insurance, except in emergencies, until prior authorization has been obtained or approved by the HDC Superintendent & Medical Director.

2.7 MEDICATION DELIVERY REQUIREMENT

A. The Contractor **shall** provide delivery services up to three (3) times daily, Monday through Saturday as needed.

B. Pharmacy services **must** also be available 24 hours per day, seven (7) days a week for urgent/emergent medication orders and Schedule II Narcotics, delivered within two (2) hours from the time ordered. New orders called in by 2:00 p.m. **must** be delivered on the same day.

C. The Contractor **shall** monitor the ordering and receiving of medications to ensure medications are ordered timely and are delivered accurately and timely.

D. The Contractor **shall** verify that the intended recipient is not deceased and remains that the HDC before it hands-off of any medications to the HDC.

E. The Contractor **shall** provide backup plans for urgent/emergent medication deliveries in the event of hazardous road conditions, natural disasters, etc. Urgent/emergent medication deliveries **must** be completed as quickly as possible in coordination with DHS.

F. The Contractor **shall** provide backup plans for urgent/emergent medication deliveries in the event of hazardous road conditions, natural disasters, etc. Urgent/emergent medication deliveries **must** be completed as quickly as possible in coordination with DHS.

G. The Contractor **shall** give DHS and the impacted HDC immediate notice of any anticipated delays that will affect the service delivery requirements.

H. The Contractor **shall** have professional staff available to fulfill the requirements of this RFP which includes nights, weekends, and holidays as requested by each of the five (5) HDCs locations listed in Section 2.1.

I. All services **must** be provided during normal state work hours, (8am – 5 pm), and within the agreed upon number of days unless otherwise arranged and coordinated with DHS.

J. The Contractor **shall** maintain reliable transportation, to include insurance, for the beneficial and expeditious provision of pharmacy services and delivery.

2.8 BILLING AND INVOICES

A. The Contractor **shall** bill the appropriate Medicaid, Medicare Part D, or private insurance(s).

B. The Contractor **shall not** bill DHS unless:

1. All insurance payments have been exhausted (reconsiderations, appeals, PAs).
2. HDC Medical Director has reviewed the case, explored all alternatives, and documented the need to pay for outside of Medicaid (or other insurance/Medicare).

C. The Contractor **shall** continue to seek reimbursement.

D. The Contractor **shall** directly bill programs such as Medicaid, Medicare, and private insurance companies or other payor sources before invoicing the HDC. If the vendor programs are not directly billable or billable to other payer services, then the HDC **shall** be billed for this service. Invoices **must** be split to indicate OTCs and prescriptions separately.

E. For any Rx being billed to the HDC, the invoice **must** indicate who at the HDC approved it.

F. The Contractor **shall** make three (3) documented attempts to work with the designated staff at the HDCs to correct any billing errors that may occur that result in a denial from the resident's insurance before charging the HDC.

2.9 CUSTOMER SERVICE

A. The Prospective Contractor **shall** provide a Staffing Plan during the Discussions Phase. The Staffing Plan **must**, at minimum, meet all Requirements set forth in this section of the RFP.

B. The Contractor **shall** include in the Staffing Plan a Project Manager who is responsible for addressing requests and concerns from startup and throughout the duration of the resulting contract.

C. The Staffing Plan **must** include a provision to address the vacancies of the Project Manager or other key personnel. In the event of the vacancy of a key person, the Contractor **shall** provide replacement candidates to DHS for review within 15 calendar days of the Contractor learning of the vacancy. DHS **shall** have the right to approve or reject proposed replacements if they do not meet the minimum requirements set forth in the RFP.

D. The Contractor **shall** replace staff members upon request by DHS for justified reasons including but not limited to performance, behavior, and security.

E. The Contractor **shall** provide and maintain sufficient staffing resources to provide timely service for the life of the contract.

F. The Contractor **shall not** propose resources who are currently engaged full time on other contracts. A single resource may not hold more than one full-time position.

G. The Contractor **shall** maintain responsibility for all costs related to providing all the staff necessary to meet the requirements in this RFP, including but not limited to staff, staff expenses, staff overhead, staff travel, or any related staff expenses, except as specifically provided in the Contract.

H. The Contractor **shall** provide a team to complete all tasks and deliverables. The Contractor will lead these activities and deliver the related services and **shall** not expect direct State support resources to be available beyond what is described within this RFP.

I. The Contractor **shall** employ staff in sufficient number and with sufficient expertise and experience to meet the needs of the State.

J. The Contractor **shall** add specialized personnel, such as a pharmacoeconomist, to Contract Staffing to provide expertise in drug coverage and cost effectiveness of pharmacy programs upon DHS request.

K. The Contractor **shall** ensure that its staff maintain good interpersonal skills and a professional business appearance.

L. The Contractor **shall** designate a pharmacy liaison to assist DHS with assessing resident needs and providing product information. The pharmacy liaison **shall** be subject to DHS approval and **must** be removed upon DHS request.

M. The pharmacy liaison **shall** conduct monthly visits to each HDC and **shall** provide training and education.

N. The Contractor **shall** assist DHS in resolving order and delivery issues

2.10 BACKGROUND CHECKS

A. Contractor **shall** comply with Ark. Code Ann. § 21-15-101 et seq., and any amendments thereto, which requires all employees of state agencies in designated positions (including those providing care, supervision, treatment, or any other services to the elderly, intellectually or developmentally disabled persons, individuals with mental illnesses, or children who reside in any state-operated facility) or a position in which the applicant or employee will have direct contact with a child, to submit to specified background and registry checks.

B. An applicant or employee found to have been convicted of a crime listed in Ark. Code Ann. § 21-15-101 et seq., **shall** be prohibited from providing services in a designated position as defined by Arkansas law or being present at the facility.

C. An applicant or employee found to have been convicted of a crime listed Contractor **shall** be immediately disqualified and prohibited from providing contract services. Replacements for a disqualified applicant or employee **shall** satisfy the requirements of the RFP for the position.

2.11 TRAINING & CONSULTING

A. The Contractor **shall** be available to assist the pharmacy consultant with the education and training of HDC staff.

B. The Contractor's responsibilities **shall** include, without limitation, the following:

1. Direct the daily operation of the medication delivery system and monitor the ordering, receiving, and accuracy of medication delivery.
2. Monitoring proper medication storage.
3. Review all pharmacy charges to each HDC.
4. Attend meetings with staff at each HDC to find ways to keep pharmacy costs as low as possible.
5. Make recommendations for changing medication therapy to medications that may be billed to other payor sources or change to the lowest cost products with the same therapeutic effectiveness.
6. Assist the HDC staff with pharmacy questions, order entry, and questions of medication compatibility.
7. Monitoring for proper medication utilization.
8. Coordinate with HDC staff and attending physicians to obtain medication orders to comply with the established HDC formulary and perform follow-up to ensure the order change was appropriately transcribed to the orders and Medication Administration Record (MAR).
9. Assist HDC staff by transcribing medication orders onto the computer or creating the computer printed orders and MAR.

10. Advise HDC staff and committees on an as needed basis.

11. DHS will have a Quality Assurance Committee which is responsible for formulary management, institutional policies, and procedures affecting HDC-specific pharmacy services, medication error review, adverse medication reaction review and other pharmacy, nursing, and physician related issues of medication therapy. The Contractor **shall** be responsive to this committee and, if possible, be willing to provide a liaison to this committee if notified in a timely manner.

2.12 REPORTING

A. The Contractor **shall** develop and produce reports in the frequency and format designated by DHS.

B. The Contractor **shall** produce a monthly report for DDS detailing spend for each HDC by, at minimum, the following:

1. Member
2. Prescription and OTC
3. Billing Method
4. Cost
5. Prescriber
6. If a prior authorization was required/obtained
7. Any insurance denials

2.13 SYSTEM APPLICATION REQUIREMENTS

A. Within six (6) months of the contract start date, the Contractor **shall** have a computer system in place that **must** interface with each HDCs' electronic health records (EHR), that is readily available and capable of providing and maintaining medication profiles on every individual resident for medical staff. HDCs currently use MatrixCare hosted software as their EHR system.

B. The system **must** be responsive to medical staff needs while adhering to the regulations for the protection of patient privacy including, without limitation, the Health Insurance Portability and Accountability Act (HIPAA) and Health Information Technology for Economic and Clinical Health (HITECH).

C. The system **must** adhere to federal and state pharmacy interface and interoperability regulations.

D. The system **must** maintain data profiles for each resident.

E. The system **must** provide error detection, logging, and alert mechanisms to monitor failed transactions or discrepancies. The Contractor **must** identify root cause and plans to remediate to DHS.

F. The State prefers the proposed system to be hosted on a private cloud or a virtual private cloud. For the purposes of this RFP, a private cloud is either a single-tenant environment where the hardware, storage, and network are dedicated to the State, or a virtual private cloud, a multi-tenant environment with network isolation and private subnets. Contractors may propose other types of cloud in their proposal, but preferential scoring will be given for private or virtual private cloud.

G. The servers and data associated with the resulting contract **must** reside in the continental United States.

H. The Contractor **shall** perform all work on the system from within the continental United States of America. The system **must not** be accessed from outside of the U.S.

2.14 SYSTEM INTERFACE REQUIREMENTS

A. The Contractor **shall** ensure the interface complies with data privacy regulations, including but not limited to HIPAA and HITECH, and provides secure transmission and storage of resident information.

B. The Contractor **shall** provide interfaces that secure and protect (encrypt) data and associated infrastructure from a confidentiality, integrity, and availability perspective while complying with HIPPA and NCPDP requirements.

C. The Contractor **shall** implement interface error detection, logging, and alert mechanisms to monitor failed transactions or discrepancies. The Contractor **must** identify root cause and plans to remediate to DHS.

D. The Contractor **shall** maintain a detailed audit trail of all transactions between the pharmacy system and EHR, including prescription changes, refills, and communications. Audit trail can be accessed by authorized user.

E. The Contractor **shall** ensure the interface adheres to national e-prescribing standards including, but not limited to, National Council for Prescription Drug Programs (NCPDP) in the U.S., for secure, standardized prescription transmission.

F. The Contractor **shall** be financially responsible for implementing and maintaining interface connections.

G. The pharmacy **shall** have a direct connection installed with MatrixCare (or DHS contracted EHR/EMR) within six (6) months that meets all state of Arkansas, federal, and MatrixCare interface requirements for ADT, e-prescribe and prescription fulfillment.

H. The interface design **must** support continuance operation despite failure or unavailability of one or more individual technology solution components (downtime solution).

I. The interface **must** be scalable to accommodate changes in scale including changes in user population, transaction volume, throughput and geographical distribution. The interface **must** be capable of making any changes to the interface data elements and testing those changes.

J. The interface **must** be real-time and/or batch with the applications and data sources.

K. The interface **must** be bidirectional between pharmacy system and EHR system.

L. The interface **must** allow real-time exchange of patient/resident demographics, allergies, contact information, and insurance details.

M. The interface **must** allow the seamless transmission of prescription orders from the EHR to the pharmacy system, including drug name, dosage, quantity, class, and instructions.

N. The interface **must** transmit HDC resident medication history within the pharmacy system.

O. The interface **must** provide error detection, logging, and alert mechanisms to monitor failed transactions or discrepancies. The Contractor **must** identify root cause and plans to remediate to DHS.

2.15 PRIVACY AND SECURITY

A. The Contractor **shall** ensure and maintain compliance with the most current version of Health Insurance Portability and Accountability Act (HIPAA), Health Information Technology for Economic and Clinical Health (HITECH), The Privacy Act of 1974, Arkansas Personal Information Protection Act (A.C.A. § 4-110-104), and other Federal and State privacy and security standards. Prior to award, the Contractor **shall** complete and sign a Business Associate Agreement (BAA), if applicable.

B. The State of Arkansas Security and Privacy policies (Policies: 1001 -1003, 1053, 1074, 1095, 4001 - 4013, and 5000 - 5011) can be found at: https://humanservices.arkansas.gov/dhs-policies/

C. The Contractor **shall** disclose any breaches of privacy or security by contacting the DHS Information Technology Security Office within one (1) business day of the discovery of the breach at dhsspa@dhs.arkansas.gov if it is a threat to DHS systems.

D. The Contractor **shall** use protected health information (PHI) and other Confidential Information only in a manner that is necessary to provide the services required in this Solicitation and under a resulting contract.

1. For purposes of a resulting contract, any information furnished or made available to the Contractor relating to DHS clients, the financial condition, results of operation, business, customers, properties, assets, liabilities or information relating to recipients and providers including, but not limited to PHI as defined by the Privacy Rule pursuant to the HIPAA of 1996, is collectively referred to as "Confidential Information."

E. The Contractor **shall** safeguard the use and disclosure of, and restrict access to, PHI, and other confidential information.

F. The Contractor and DHS acknowledge that the disclosure of Confidential Information in contravention of the provisions hereof would damage the party to whom the information disclosed relates and such party has the right to seek all remedies at law or equity to minimize such damage and to obtain compensation therefore.

G. The Contractor **shall** retain all PHI, as defined by HIPAA, for ten (10) years.

H. The Contractor **shall** safeguard the use and disclosure of information concerning applicants for or recipients of Title XIX services in accordance with 42 CFR Part 431, Subpart F, and **shall** comply with 45 CFR Parts 160 and 164 and **shall** restrict access to and disclosure of such information in compliance with federal and state laws and regulations.

2.16 INSURANCE REQUIREMENTS

A. Prior to contract awarding, the Contractor **shall** furnish an approved “Certificate of Insurance” and **shall** maintain the insurance requirements throughout the contract and any/all extensions.

B. The Insurance **must** not be modified without DHS approval.

C. The Contractor **shall** maintain insurance for the contract period and any resultant renewals in the minimum amount:

1. One million dollars ($1,000,000) per occurrence, general liability.

2. Three million dollars ($3,000,000) aggregate, for professional liability, negligence, errors and omissions and public liability.

D. The insurance **must** have limits sufficient to cover losses resulting from or arising out of the Contractor’s action or inaction in the performance of the contract by the Contractor’s agents, servants, employees, or subcontractors.

E. The insurance **must** cover and continue to cover all occurrences during the term of this contract and any extensions thereof.

F. All insurance policies **must** be with a company licensed by the State of Arkansas to do business and to provide such policies.

G. The Contractor **shall** notify DHS, not less than forty-five (45) days in advance of any non-renewal, cancellation, or expiration of their insurance policy. In the event DHS receives a notice of non-renewal, the Contractor **shall** provide DHS with an insurance policy from another carrier at least thirty (30) days prior to the expiration of the insurance policy then in effect.

H. DHS **shall** have the right to inspect the original insurance policies held by the Contractor.

2.17 PROPERTY AND SOFTWARE

A. All documents and deliverables prepared by Contractor and accepted by DHS **shall** become the property of DHS and **shall not** be used for any other purpose by Contractor without DHS's specific written consent.

B. Any specifications, drawings, technical information, dies, cuts, negatives, positives, data, or any other commodity furnished to Contractor hereunder or in contemplation hereof or developed by Contractor for use hereunder **shall** remain property of the State, **shall** be kept confidential, **shall** be used only as expressly authorized, and **shall** be returned at Contractor's expense to the F.O.B. point provided by DHS or OSP. Contractor **shall** properly identify items being returned.

C. Property, including intellectual property, acquired or created by Contractor as a Contract deliverable or as a result of its performance of contract services, is the property of DHS that **shall** be used only as expressly authorized and kept confidential as permitted or required by law.

D. Contractor **shall** be responsible for the proper custody and care of all DHS owned property, including DHS owned property used in connection with the performance of this contract, and Contractor agrees to reimburse DHS for its loss or damage due to negligence, theft, vandalism, or Acts of God.

E. In accordance with Ark. Code Ann. § 19-60-106, any data received or stored by a Contractor for storage services, software services, or any other Contract service is the property of DHS.

   1. For the purposes of this section, “Data” means recorded information, regardless of form or characteristic.

F. DHS reserves the right to request that Contractor provide a detailed data transition plan and/or return its data at any time, for any purpose.

G. The Contractor will have access to all applications software required by DHS for use in the performance of the services covered in the resulting contract, subject to customary confidentiality and other license terms and conditions.

   1. No changes in the applications software may be made without the written consent of DHS if the change would cause DHS to incur additional costs for either hardware or software upgrades or both.

H. DHS **shall** retain ownership of any code, algorithm, or methodology created by Contractor and used in the development of a deliverable under a resulting contract.

I. Any applications software developed by Contractor in the performance of the services under the resulting contract **must** become the property of the State of Arkansas at no additional cost.

J. Any existing software applications owned by Contractor and used in the performance of the services under the resulting contract **must** be granted to the State of Arkansas at no additional cost, subject to customary confidentiality and other license terms and conditions.

K. Contractor **shall** provide DHS ownership of any software that is designed, developed, installed, or enhanced with Federal funding per Federal Financial Participation (FFP) (45 CFR 95.617).

L. Contractor **shall** provide DHS with a royalty-free, nonexclusive, and irrevocable license to reproduce, publish, or otherwise use and authorize others to use for federal and state government purposes software, modifications to software, and documentation that is designed, developed, installed, or enhanced with Federal funding per FFP (42 CFR 433.112).

2.18 CONFLICT OF INTEREST MITIGATION

A. Contractor **shall** comply with the terms of the DHS Organizational or Personal Conflict of Interest provisions and disclose all actual, apparent, or potential conflicts of interest to DHS within five (5) business days of having knowledge of them, unless otherwise approved by DHS.

B. Contractor **shall** develop a mitigation plan as requested which **must** be approved and accepted by DHS prior to implementation. Changes to the approved mitigation plan **must** be approved in advance by DHS.

2.19 MANDATED REPORTING

A. Pursuant to Ark. Code Ann. §§ 12-18-402(b)(10) and 12-12-1708(a)(1)(AA), Contractor and all of its employees, agents, and all Subcontractors and Subcontractor’s employees and agents **shall**

immediately make a report to the Child Abuse Hotline or the Adult Maltreatment Hotline (based on type of maltreatment) if Contractor or any of its employees, agents, or Subcontractors' employees and agents, while performing duties under this contract, have reasonable cause to suspect that:

1. A child has been subjected to child maltreatment.
2. A child died as a result of child maltreatment.
3. A child died suddenly and unexpectedly.
4. Observe a child being subjected to conditions or circumstances that would reasonably result in child maltreatment.
5. An endangered person or an impaired person has been subjected to conditions or circumstances that constitute adult maltreatment or long-term care facility resident maltreatment.

2.20 AUDIT REQUIREMENTS

A. Contractor **shall** comply with DHS audit requirements as outlined in "Arkansas Department of Human Services Audit Guidelines."

B. Copies may be obtained from:

Arkansas Department of Human Services
Office of Payment Integrity Audit Coordination
P.O. Box 1437 – Slot S270

2.21 CONTRACT REMEDIES

A. Contractor **shall** be liable to the State for all actual and direct damages caused by Contractor's default.

1. The State may self-perform or buy substitute deliverables from a third party for those that were to be provided by Contractor.
2. The State may recover the costs associated with self-performance or acquiring substitute deliverables, less any expenses or costs avoided by Contractor's default.
3. If actual and direct damages are uncertain or difficult to determine, or are otherwise not addressed in the resulting contract, the State may recover liquidated damages.

B. Unless otherwise specified, liquidated damages will be in the amount of 1% of the value of the order, deliverable, or milestone that are the subject of the default, for every day that the default is not cured by Contractor.

1. Any liquidated damages agreed upon in the Performance Standards attachment **shall** apply and the State will not invoke duplicative damages.

C. The State may withhold payment or set off the amount of any liquidated damages, other damages, or any other obligation of Contractor or its subsidiaries to the State, including any amounts Contractor owes to the State under the resulting contract, against any payments due to Contractor under the resulting contract.

2.22 EXPIRATION OR TERMINATION PROCEDURE REQUIREMENTS

A. Upon delivery by electronic mail or certified mail of a Notice of Termination specifying the nature of the termination and the date upon which such termination becomes effective, Contractor **shall** complete the following unless otherwise directed by DHS:

1. Stop work under the resulting contract on the date and to the extent specified in the Notice of Termination which may or may not be the same date as contract termination.
2. Place no further orders or enter into any additional subcontracts for services.
3. Terminate all orders and subcontracts to the extent that they relate to the performance of work terminated by the Notice of Termination.

4. Assign to DHS in the manner and to the extent directed by the DHS representative all of the rights, title, and interest of Contractor in the orders or subcontracts so terminated.

    a. DHS **shall** have the right, in its discretion, to settle or pay any and all claims arising out of the termination of such orders and subcontracts.

5. With approval or ratification of the DHS representative, settle all outstanding liabilities and claims arising out of terminated orders and subcontracts, the cost of which would be reimbursable, in whole or part, under the contract.

6. Transfer title to DHS and deliver in the manner at the time and extent directed by the DHS representative, all files, data, information, manuals, or other documentation or property, in any form whatsoever, that relate to the work terminated by the Notice of Termination.

7. Complete the performance of such part of the work as **shall not** have been terminated by the Notice of Termination or stop work order.

8. Take such action as may be necessary, or as the DHS representative may direct, for the protection and preservation of the property related to the contract in the Contractor's possession and in which DHS has or may acquire an interest.

B. Contractor **shall** proceed immediately with the performance of the above obligations notwithstanding any delay in determining or adjusting the amount of any item or reimbursable price under this subsection.

C. After receipt of a Notice of Termination, Contractor **shall** submit to DHS all outstanding claims within ten (10) working days.

D. Contractor and DHS may agree upon the amounts to be paid to Contractor by reason of the total or partial termination of work as described in this subsection.

E. In the event of Contractor and DHS's failure to agree, in whole or in part, on the amount to be paid to Contractor in connection with the total or partial termination of work as described in this section, DHS will determine, on the basis of information available, the amount, if any, due to Contractor by reason of termination and **shall** pay to the Contractor the amount so determined.

2.23 TRANSITION PLAN PROCEDURES

A. DHS reserves the right to request submission of a transition plan and/or the timely delivery of any DHS data, contract deliverables, at any time, for any reason, during the contract term.

B. Within thirty (30) calendar days of DHS request, Contractor **shall** submit for approval a detailed plan for transitioning all contracted services to DHS, or to another Contractor selected by DHS to provide the contracted services.

    1. Contractor **shall not** implement the plan until it has received DHS's written approval of the plan, including pre-approval of the format and delivery method of all proprietary data, and all contract deliverables.

    2. Contractor **shall** take all reasonable action to provide a minimally disruptive turnover.

C. The plan **must** include the following, without limitation:

    1. Contractor's proposed approach to the transition;

    2. List of Contractor's tasks, subtasks, and schedule for all transition activities;

    3. Contractor's organizational chart and staffing matrix for all staff responsible for transition activities including title, telephone number, and email address;

    4. Operational tasks and procedures necessary to support ongoing operations during transition;

    5. A detailed description of the services required by the new Contractor to complete the transition;

6. A detailed description of the transfer of proprietary data. DHS **must** pre-approve the format and delivery method of all proprietary data, and the plan **must** include at minimum, the following:

    a. Provisions for the delivery of all proprietary data collected and/or created during the life of the contract to DHS thirty (30) calendar days prior to the contract end date.

    b. Provisions for the delivery of all proprietary data collected and/or created during the final thirty (30) business days of the contract, or any proprietary data not captured in the initial delivery no more than fifteen (15) business days following the contract end date.

7. DHS reserves the right to request re-submission of any proprietary information deemed unacceptable after Contractor's initial transfer.

D. Contractor **shall** work in good faith and cooperate with any new Contractor and the State during the transition period and **shall** participate in any transitional meetings as required. Upon DHS request, transition coordination activities **shall** include "shoulder to shoulder" observation, training, and support by the incumbent Contractor for DHS and the new contractor.

E. Ten (10) business days after the completed transition, Contractor **shall** provide DHS with a Transition Results Report documenting the results of each transition plan step.

F. The transition **shall** not be considered complete until this document is approved by DHS.

2.24 PERFORMANCE STANDARDS

A. State law requires that contracts for services include Performance Standards for measuring the overall quality of services that a Contractor **shall** provide.

B. The State may be open to negotiations of Performance Standards prior to contract award, prior to the commencement of services, or at times throughout the contract duration.

C. Failure to meet the minimum Performance Standards as specified will result in the assessment of damages, as indicated in the Performance Standards found in Table A. In the event a Performance Standard is not met, Contractor will have the opportunity to defend or respond to the insufficiency. The State has the right to waive damages if it determines there were extenuating factors beyond Contractor's control that hindered the performance of services. In these instances, the State has final determination of the performance acceptability.

D. Should any compensation be owed to the Department due to the assessment of damages, Contractor **shall** follow the Department's direction regarding the required compensation process.

E. Contractor's failure to comply with obligations of a resulting contract, any applicable State and federal laws, regulations, and policies in performance of the services **shall** be deemed insufficient and unacceptable performance.

F. During the term of the resulting contract, the State will complete sufficient performance evaluation(s) to determine if Contractor's performance is acceptable. The State's determination of "Acceptable Performance" as defined herein **shall** be final and controlling. In the event a Performance Standard is not met, Contractor will have the opportunity to defend, respond to, or cure the insufficiency to the State's satisfaction.

G. The State **shall** have the right to modify, add, or delete Performance Standards throughout the term of the resulting contract, should the State determine it is in its best interest to do so. Any changes or additions to Performance Standards will be made in good faith following acceptable industry standards and may include Contractor input so as to establish standards that are reasonably achievable. All changes to Performance Standards **shall** be in writing as agreed to by the parties.

H. Unless outlined differently in Table A below, acceptable performance is defined as one hundred percent (100%) compliance with all service criteria and standards for acceptable performance throughout the contract term as determined by DHS.

I. Penalties will be calculated from the total payment for the month in which the deficiency took place and assessed in a future months' payment to Contractor. DHS may impose damages for insufficient performance cumulatively or independently. The State may consider possible pro-rata application of damages as it determines by circumstances giving rise to the non-compliance incident(s) within the State's sole discretion.

J. Upon DHS request, an acceptable Corrective Action Plan (CAP) **shall** be submitted for DHS approval within ten (10) business days of the request.

K. DHS reserves the right to impose additional penalties to those stated below, including without limitation: withholding payment on future invoices until Contractor is in full compliance; maintaining a below standard Vendor Performance Report (VPR) in the vendor file; and Contract termination.

SECTION 3 – SELECTION

3.1 SELECTION PROCESS

A. SAS OSP will review each *Technical Proposal Packet* to verify Submission Requirements have been met. *Technical Proposal Packets* that do not meet Submission Requirements will be rejected and will not be evaluated.

1. The State may conduct cost checks based on the cost submitted by each Prospective Contractor on the completed pricing response.

   a. Prospective Contractors submitting Responsive Proposals with a proposed cost that falls twenty-five percent (25%) or more from the average submitted cost may be asked to justify their submitted cost.

   b. Should SAS OSP request clarification and/or additional information regarding cost, Prospective Contractors **shall** provide clarification and/or additional information as specified by the request.

B. A Department-appointed Evaluation Committee will evaluate and score Responsive Proposals. Evaluation will be based on Prospective Contractor's response to the *Information for Evaluation* section included in the *Technical Proposal Packet* and the pricing submitted by the Prospective Contractor.

1. Cost information will be provided to the members of the Evaluation Committee (Evaluators) to allow them to determine which proposal(s) is the most advantageous to the State.

2. Evaluators will individually review and evaluate proposals and complete an Individual Score Worksheet for each proposal. Individual scoring for each Evaluation Criteria will be based on the scoring description in *Table B: Scoring Table*.

TABLE B: SCORING TABLE

SCORE	DESCRIPTION
10	The response provides metrics clearly establishing that the Prospective Contractor is reliable and capable of fully performing the required services.
5	The response provides metrics suggesting that the Prospective Contractor's level of performance may be acceptable, but it does not clearly establish that the Prospective Contractor is reliable and capable of fully performing the required services.
0	The response provides metrics clearly establishing that the Prospective Contractor is unreliable and incapable of fully performing the required services.

3. After initial individual evaluations are complete, the Evaluators will meet to discuss their individual scores. At the initial consensus meeting, each Evaluator will be afforded an opportunity to discuss his or her score for each evaluation criteria.

4. After Evaluators have had an opportunity to discuss their individual scores with the committee, the Evaluators will be given the opportunity to change their initial individual scores, if they feel that is appropriate.

5. The final individual scores of the Evaluators will be recorded on the Consensus Scoresheets and averaged to determine the group or consensus score and rank for each proposal.

6. Other agencies, consultants, and experts may also examine documents at the discretion of the Department.

C. Prospective Contractors submitting Responsive Proposals will be contacted by SAS OSP to schedule an interview.

1. Prospective Contractors **shall** attend the interview as scheduled by SAS OSP.

2. Evaluators will complete an Individual Score Worksheet for each interview. Evaluation will be based on Prospective Contractor's responses to questions presented during the interview Individual scoring for each interview will be based on the Scoring Descriptions in 3.1.B.1.

3. During a final consensus meeting, after all interviews are complete, Evaluators will have the opportunity to discuss the interviews and change their individual interview scores on the Consensus Scoresheet, if they feel that is appropriate.

   a. The final individual scores of the Evaluators will be recorded on the Consensus Scoresheets and averaged to determine the group or consensus score and rank for each proposal.

4. Should the State receive only one (1) Responsive Proposal, the State may forgo the interview portion of the evaluation if the proposal has received the Maximum Weighted Score Possible for the Experience, Solution, and Risk subsections.

   a. In this scenario, the proposal would automatically receive the maximum weighted score possible for the interview subsection.

D. Should the State request clarification and/or additional information Prospective Contractors' responses, Prospective Contractors **shall** provide clarification and/or additional information as specified by the State.

E. SAS OSP will submit responses and pricing received from the interviewed Perspective Contractors, along with the Evaluation Committee's recommendation to the Department for review and approval to move into Discussions.

3.2 TECHNICAL PROPOSAL SCORE

A. The *Information for Evaluation* section has been divided into subsections.

1. Each subsection has been assigned a maximum point value of ten (10) points. The total point value for each subsection is reflected in the table below as the Maximum Raw Points Possible.

2. The Department has assigned Weighted Percentages to each subsection according to its significance.

INFORMATION FOR EVALUATION SUBSECTIONS	MAXIMUM RAW POINTS POSSIBLE	SUBSECTION'S WEIGHTED PERCENTAGE	* MAXIMUM WEIGHTED SCORE POSSIBLE
Experience	10	30%	210
Solution	10	30%	210
Risk	10	10%	70
Interview	10	30%	210
Total Technical Score	**40**	**100%**	**700**

*Subsection's Percentage Weight x Total Technical Maximum Weighted Score = Maximum Weighted Score Possible for the subsection.

B. The proposal's weighted score for each subsection will be determined using the following formula:

(A/B)*C =D

A = Actual Raw Points received for subsection in evaluation
B = Maximum Raw Points possible for subsection
C = Maximum Weighted Score possible for subsection
D = Weighted Score received for subsection

C. The proposal's weighted scores for subsections will be added to determine the Total Technical Score for the proposal.

3.3 COST SCORE

A. When scores are applied to pricing, the maximum amount of cost points will be given to the proposal with the lowest Grand Total Estimated Cost for 4 Years as shown on the completed *Official Solicitation Price Sheet*. (See *Grand Total Score* for maximum points possible for cost score.)

B. The amount of cost points given to the remaining proposals will be allocated by using the following formula:

(A/B)*C =D

A = Lowest estimated cost
B = Second (third, fourth, etc.) lowest estimated cost
C = Maximum Points for lowest estimated cost
D = Total price points received

3.4 GRAND TOTAL SCORE

The Technical Score and Cost Score will be added together to determine the Grand Total Score for the proposal. The State may move forward to Discussions with the Prospective Contractor determined reasonably susceptible of being selected for award.

	MAXIMUM POINTS POSSIBLE
Technical Proposal	700
Cost	300
Maximum Possible Grand Total Score	**1,000**

3.5 EXPLANATION OF THE SUBSECTIONS OF THE TECHNICAL PROPOSAL

A. Experience

1. The Experience subsection included in the *Technical Proposal Packet* allows Prospective Contractors to differentiate themselves based on their experience, technical capability, and understanding of the State's specific needs.
2. Prospective Contractors should identify expertise in the form of a claim and provide relevant experience to support each claim.
3. Prospective Contractors should use verifiable metrics (number of accounts, size of accounts, years of experience, customer satisfaction ratings) to support each claim.

B. Solution

1. The Solution subsection included in the *Technical Proposal Packet* allows Prospective Contractors to differentiate themselves based on their proposed solution and/or approach to solve the State's specific needs.
2. Prospective Contractors should provide a high-level overview of the Prospective Contractor's proposed solution and/or approach to services using the Requirements outlined in the RFP.
3. Proposed solutions should be non-technical and include the Prospective Contractor's recommendations for meeting the objectives and Requirements of the RFP.
4. Additional service options and recommendations above and beyond those included in proposed solution should be included in the *Recommended Options Form*.

C. Risk

1. The Risk subsection included in the *Technical Proposal Packet* allows Prospective Contractors to identify and prioritize major risks that they reasonably foresee could potentially prevent or impair the Prospective Contractor's delivery of the solution as offered in the proposal or to otherwise fail to meet the State's desired outcome, specifications, and performance standards, and how they will mitigate, manage, and/or minimize each risk listed.

    a. Prospective Contractors should include sources, causes, or actions that are both within and beyond the control of the Prospective Contractors that they reasonably foresee may cause cost increases, delays, amendments, or dissatisfaction to the State.

    b. Risks should be described in simple, clear, and non-technical terms.

    c. Prospective Contractor should explain how the Prospective Contractor will mitigate, manage, and/or minimize each risk listed.

    d. The Documented Performance cell should include details such as how many times any identified risk was previously mitigated and the impact on the Prospective Contractor's performance in terms of time, cost, and client satisfaction.

D. Interview

1. The Interview will allow Prospective Contractors to further demonstrate their experience in providing the services outlined in the RFP.

    a. Each Prospective Contractor meeting the Submission Requirements will be contacted by SAS OSP to schedule an interview. Prospective Contractors **shall** attend the interview as scheduled by SAS OSP.

    b. Prospective Contractors **shall** identify one (1) Project Lead at the time of interview confirmation who **shall** attend the interview as part of the evaluation process.

    c. The Evaluation Committee will interview the Prospective Contractor's identified Project Lead using a pre-determined set of interview questions. Follow up questions may be asked based on responses given by the Project Lead.

3.6 DISCUSSIONS

A. The State will move forward into Discussions with the responsible Prospective Contractor(s) whose proposal(s) have been determined to be reasonably susceptible to being selected for award.

B. Discussions may be conducted with the highest-ranking Prospective Contractor based on the Grand Total Score for each proposal or with multiple Prospective Contractors reasonably susceptible of being awarded a contract.

C. Should the State choose to engage in Discussions with the highest-ranking Prospective Contractor, the Prospective Contractor invited to participate in Discussions **shall** provide all documents required during Discussions.

1. Should the Department determine, through the Discussions process, that the Prospective Contractor's solution, approach, timelines, deliverables, expectations of the State, or a combination thereof make the Prospective Contractor no longer reasonably susceptible of being awarded a contract, the Department may abandon Discussions with that Prospective Contractor through a written justification to SAS OSP, and may proceed to additional rounds of Discussions with the next highest-ranking Prospective Contractor.

D. Should the State choose to engage in Discussions with multiple Prospective Contractors contemporaneously, each Prospective Contractor invited to participate in Discussions **shall** provide all documents required during Discussions.

1. Should a Prospective Contractor not provide the required documents within timeframes requested by SAS OSP or choose not to engage in the Discussions process, the Prospective

Contractor's proposal will be considered withdrawn and will not be subject to further consideration in the Solicitation process.

E. If Discussions necessitate material revisions of proposals, each responsible Prospective Contractor reasonably susceptible of being awarded a contract will be provided an opportunity to revise its proposal for the purpose of submitting a best and final offer.

F. During the Discussions Kick Off Meeting, the Prospective Contractor **shall** provide the following documents to the State:

1. A detailed scope of work clearly identifying the Prospective Contractor's understanding, implementation, and performance of services required in this RFP, including all activities required by the Contractor and all activities expected by the State/Participating Entities

2. A Risk Management Plan intended to mitigate any risks, including but not necessarily limited to, the risks identified in the Risk Plan submitted in the Prospective Contractor's *Technical Proposal Packet*

3. A proposed financial summary, including:

   a. The completed pricing response and *Recommended Options Form* submitted in the Prospective Contractor's *Technical Proposal Packet*

   b. A proposed payment schedule

4. Proposed project management and reporting templates

G. During the Discussions Kick Off Meeting, the Prospective Contractor **shall** address questions and/or concerns the State may have to the satisfaction of the State.

H. During Discussions, the Prospective Contractor **shall** revise the discussions documents until agreement is made and the State has provided final approval.

1. The Prospective Contractor **shall** attend follow up Discussions meeting as determined necessary by the State. Reasonable effort will be made to accommodate scheduling conflicts.

I. During Discussions, the Prospective Contractor **shall** present a final draft of the Discussions documents to the State, including, at minimum:

1. A summary of all plans and scope of work developed during the discussions process and mutually agreed upon by the State and the Prospective Contractor

2. A detailed scope of work clearly identifying the Prospective Contractor's implementation and performance of services required in this RFP, including all provisions negotiated and agreed upon by the State and the Prospective Contractor since the Discussions Kick Off Meeting

3. Description of deliverables in terms of simplified metrics

4. The Risk Management Plan

5. Project management and reporting templates

6. Financial summary, including:

   a. The completed pricing response submitted in the Prospective Contractor's *Technical Proposal Packet*

   b. A list of agreed upon and accepted recommended options (with impact to price)

   c. A payment schedule

   d. Contact information for the Prospective Contractor's key personnel

J. During Discussions, the Prospective Contractor **shall** present the final drafts of the items and **shall** summarize the coordination and planning completed during the discussion process.

K. Once approved by the State, final drafted documents will become part of the resulting contract.

L. The Prospective Contractor may determine which key personnel will attend the Discussions meetings.

3.7 ANTICIPATION TO AWARD

A. Once an anticipated Contractor has been determined, the anticipated award will be posted to the Solicitation posting in ARBuy by the date and time listed in Table A.

1. It is the responsibility of Prospective Contractors to check the ARBuy website for the posting of an anticipated award.

B. Anticipated awards will generally be posted for a period of fourteen (14) days prior to the issuance of a contract. These notices are anticipated awards only and are subject to protest.

C. A contract resulting from this Solicitation is subject to State review and approval processes prior to award, which may include Legislative review.

3.8 PROSPECTIVE CONTRACTOR ACCEPTANCE OF EVALUATION TECHNIQUE

The submission of a *Technical Proposal Packet* signifies the Prospective Contractor's understanding and agreement that some subjective value judgments will be made during the evaluation and scoring of the technical proposals.

SECTION 4 – SOLICITATON TERMS AND CONDITIONS

4.1 ACCEPTANCE OF REQUIREMENTS

A. A Prospective Contractor's past performance with the State may be used to determine if the Prospective Contractor is responsible (19 CAR § 1-401).

1. Proposals submitted by Prospective Contractors determined to be non-responsible will be rejected.

B. A single Prospective Contractor **must** be identified as the prime contractor.

1. The prime Contractor **shall** be responsible for the resulting contract and jointly and severally liable with any of its subcontractors, affiliates, or agents to the State for the performance thereof.

C. By submission of a proposal, the Prospective Contractor represents and warrants:

1. That the prices in the proposal have been arrived at independently, without any collusion with another competing Prospective Contractor.

   a. Collusion violates Arkansas Procurement Law and can lead to suspension, debarment, and can be referred to the Attorney General's officer for investigation and appropriate legal action (Arkansas Code Annotated § 19-61-403 and 19-61-702).

2. That the Prospective Contractor has not retained a person to solicit or secure the resulting contract upon an agreement or understanding for a commission, percentage, brokerage, or contingent fee, except for retention of bona fide employees or bona fide established commercial selling agencies maintained by the Prospective Contractor for the purpose of securing business.

D. Prospective Contractor should not discuss the Solicitation or proposal response, issue statements or comments, or provide interviews to public media during the Solicitation and award process.

E. Qualifications and services **must** meet or exceed the required Specifications as set forth in the Solicitation.

F. The State will not pay costs incurred in the preparation of a proposal.

4.2 PAYMENT AND INVOICE PROVISION CERTIFICATION REGARDING LOBBYING:

A. Contractor **shall** comply with Public Law 101-121, section 319 (31 U.S.C. § 1352) for an award in excess of $100,000.00 by certifying that appropriated federal funds have not been or will not be used to pay any person to influence or attempt to influence a federal official/employee in connection with the awarding of any federal contract, grant, loan, or cooperative agreement.

B. If Contractor has paid or will pay for lobbying using funds other than federal appropriated funds, Standard Form-LLL (Disclosure of Lobbying Activities) **shall** be completed and included as an attachment to the resulting contract.

4.3 CERTIFICATION REGARDING EMPLOYMENT PRACTICES

A. In order to comply with the provision of Act 954 of 1977, relating to unfair employment practices, Contractor agrees that:

1. Contractor **shall not** discriminate against any employee or applicant for employment because of race, sex, color, age, religion, handicap, or national origin.

2. In all solicitations or advertisements for employees, Contractor **shall** state that all qualified applicants **shall** receive consideration without regard to race, color, sex, age, religion, handicap, or national origin.

3. Contractor **shall** furnish such relevant information and reports as requested by the Human Resources Commission for the purpose of determining compliance with the statute.

4. Failure of Contractor to comply with the statute, the rules and regulations promulgated thereunder, and this nondiscrimination clause **shall** be deemed a breach of contract and it may be cancelled, terminated, or suspended in whole or in part.

B. Contractor **shall** include the provisions of above items (1) through (4) in every subcontract so that such provisions **shall** be binding upon such subcontractor or Contractor.

4.4 CERTIFICATION REGARDING DEBARMENT

Contractor, as a lower tier recipient of $25,000.00 or more in federal funds, **shall** comply with Executive Order 12549 (Certification Regarding Debarment, Suspension, Ineligibility, and Voluntary Exclusion-Lower Tier Covered Transactions).

4.5 GENERAL TERMS AND CONDITIONS

A. The Contractor **must** be registered as a vendor to receive payment and may register online by visiting https://www.ark.org/vendor/index.html and clicking the *Start Here* button.

B. All payments to the Contractor under a resulting contract **shall** be made exclusively through ACH (Automated Clearing House) direct deposit.

1. The Contractor **shall** provide the necessary banking information, including account number, routing number, and any other details required to facilitate ACH direct deposits.

2. The Contractor **shall** be responsible for ensuring that the provided banking information is accurate and up to date. Any delays or errors in payment caused by incorrect or outdated information provided by the Contractor **shall not** be the responsibility of the Department.

3. The Department will process payments according to the agreed payment schedule, and all payments made via ACH direct deposit **shall be** considered as duly received upon successful transmission to the Contractor's designated bank account.

C. Pursuant to Arkansas State Procurement Law, the Contractor **shall** certify that, unless they offer to provide the goods or services for at least twenty percent (20%) less than the lowest certifying Prospective Contractor:

1. They are not engaged in and **shall not**, during the aggregate term of the resulting contract, engage in a boycott of Israel (Arkansas Code Annotated § 25-1-503),

2. They are not engaged in and **shall not**, during the aggregate term of the resulting contract, engage in a boycott of an Energy, Fossil Fuel, Firearms, or Ammunition Industry (Arkansas Code Annotated § 25-1-1102).

D. Pursuant to Arkansas Procurement Law, the Contractor **shall** certify that the Contractor does not knowingly employ or contract with illegal immigrants and that the Contractor **shall not** knowingly employ or contract with illegal immigrants during the aggregate term of any contract with the State or any of its departments, institutions, or political subdivisions (Arkansas Code Annotated § 19-60-105).

E. The Prospective Contractor **shall** certify that they are not a company owned in whole or with a majority ownership by the government of the People's Republic of China (a "Scrutinized Company") and that they do not and **shall not** during the aggregate term of the resulting contract employ a Scrutinized Company as a contractor (Arkansas Code Annotated § 25-1-1203).

F. Pursuant to Arkansas State Procurement Law, the Contractor **shall** in all other respects comply with the laws, rules, and executive orders of the state that apply to the Contractor's performance under a resulting contract.

G. Specifications, drawings, technical information, dies, cuts, negatives, positives, data, other such item furnished by the State to the Contractor, or a combination thereof hereunder or in contemplation hereof or developed by the Contractor for use hereunder **shall**:

1. Remain property of the State.

2. Be kept confidential as permitted or required by law.

3. Be used only as expressly authorized.
4. Be returned at the Contractor's expense to the F.O.B. destination point provided by the State, as requested by the State.
5. The Contractor **shall** properly identify items being returned.

H. This RFP incorporates all terms of the *Services Contract (SRV-1) Fillable Form* (found here).

1. The contract template is attached to the Solicitation in ARBuy as a sample for your information only.

I. A Prospective Contractor's proposal may be rejected if a Prospective Contractor takes exception to any terms, conditions, or Requirements in this RFP.

J. The Prospective Contractor agrees and **shall** adhere to all terms, conditions, and Requirements if selected as the Contractor.

1. Items may only be modified if the legal requirement is satisfied and approved by the State during Discussions.

4.6 DHS TERMS

A. Contractor **shall** be fully responsible for all work performed under the contract.

B. Contractor may, with the prior written consent of DHS, enter into written subcontract(s) for performance of certain of its functions under the contract. No subcontract under this contract **shall** in any way relieve Contractor of any responsibility for performance of its duties. Contractor agrees that all subcontracts **shall** adhere to DHS policies.

C. Unless otherwise approved by DHS, Contractor **shall** give DHS immediate notice in writing by certified mail of any action or suit filed and prompt notice of any claim made against Contractor or any subcontractor which may result in litigation related in any way to the contract or DHS.

D. Contractor will not be liable for delay in performing under the contract if the delay arises out of causes beyond the control and without the fault or negligence of Contractor.

E. Contractor, its officers, and employees of Contractor or subcontractor, in the performance of the resulting contract, **shall** act in an independent capacity and not as officers or employees of DHS. DHS will exercise no managerial responsibility over Contractor nor will the resulting contract be construed as a partnership or joint venture between Contractor or any subcontractor and DHS or the State of Arkansas.

F. Contractor hereby represents and warrants to DHS that as of the execution date of a resulting contract:

1. Contractor has been duly organized and is validly existing and in good standing under the laws of the State of Arkansas, with the power, authority, and legal right to enter into a contract.
2. There are no proceedings or investigations pending or threatened, before any court, regulatory body, administrative agency, or other governmental instrumentality having jurisdiction over Contractor or its properties (i) seeking to prevent the consummation of any of the transactions contemplated by a resulting contract; or (ii) seeking any determination or ruling that might materially and adversely affect Contractor's performance of its obligations hereunder, or the validity or enforceability of a resulting contract.
3. All approvals, authorizations, consents, orders, or other actions of any person or of any governmental body or official required to be obtained on or prior to the date hereof in connection with the execution and delivery of a resulting contract and the performance of the services contemplated by a resulting contract and the fulfillment of the terms hereof have been obtained.
4. Contractor and Contractor's executive officers have not been the subject of any proceedings under the United States Bankruptcy Code.

G. Contractor **shall** in all other respects comply with State and federal laws, regulations, policies, manuals, executive orders, and other official issuances that apply to Contractor's performance under a resulting contract.

1. If a newly enacted statute, regulation, policy, or executive order requires a change to the contract or any attachment thereof, Contractor **shall** deem this contract and any attachment to be automatically amended to comply with the newly enacted statute or regulation as of its effective date.

2. Contractor and State will subsequently cooperate in good faith to amend the contract to comply as mandated through either a change order or amendment, whichever is deemed necessary under applicable laws and/or rules.

H. In the event of any dispute concerning the State's performance under the contract, Contractor **shall** notify the DHS Division Director in writing of any disputes or controversies including, without limitation, controversies based upon breach of contract, mistake, misrepresentation, or other cause for contract modification or recession.

1. The State Procurement Director, the head of a procurement agency, or a designee of either officer, is authorized prior to commencement of an action in court or any other action provided by law, to attempt to negotiate a settlement of the controversy with DHS and the Contractor in accordance with Ark. Code Ann. § 19-61-703.

2. If the claim or controversy is not resolved by mutual agreement, and after reasonable notice to the DHS and the Contractor is made in accordance with Ark. Code Ann. § 19-61-703(c)(1), the State Procurement Director, the head of a procurement agency, or a designee of either officer, **shall** promptly issue a decision in writing stating the reason for the actions taken and a copy of the decision **shall** be mailed or otherwise furnished to Contractor. This decision will be final and conclusive.

3. Pending final determination of any controversy hereunder, Contractor **shall** proceed diligently with performance of the resulting contract and in accordance with DHS instructions.

4.7 PAYMENT AND INVOICE PROVISIONS

A. Payment will be made only after Contractor has successfully satisfied the agency as to the reliability and effectiveness of the goods or services purchased as a whole.

B. Contractor **shall** invoice the State as required by the Department and should not invoice the State in advance of delivery and acceptance of any commodities or services (Ark. Code Ann. § 19-4-1206).

1. Invoices **must** be sent to the "Invoice To" point shown on the purchase order and will be paid in accordance with applicable State accounting procedures.

2. Contractor should invoice the agency by an itemized list of charges. The Department's Purchase Order Number and/or the Contract Number should be referenced on each invoice.

C. Contractor will be paid upon completion of all of the following:

1. Submission of an original and the specified number of copies of a properly itemized invoice in a format approved by DHS;

2. Delivery and DHS acceptance of the commodity, goods, or services; and

3. Proper and legal processing of the invoice by all necessary State agencies.

D. Contractor **shall** bill all services rendered under a resulting contract as set out herein.

1. No services may be billed to a Medicaid Provider or to any other contract.

2. Payments will be made after services are provided based on the financial terms in Table B.

Table B: Financial Terms

Funding Source	Reimbursement Method*	Payment Limitations**	Match Requirements***	
			Maximum Amount of Match Required OR Percentage of Allowable Billing Required	Type(s) of Match (Select from listing below)

a. Reimbursement Method will be selected from the following: Actual Cost Reimbursement; Final Negotiated Rate; Fixed Rate; Scheduled Reimbursement.

b. Payment Limitations will be selected from the following: Quarterly Cumulative; Monthly Cumulative; None.

c. Matching Requirements: Contractor **shall** certify the funds, property, goods, or services listed in this section will be used to meet the match requirements of the resulting contract.

d. If there are no matching requirements for a funding source, Contractor will enter “None” in the corresponding box above.

e. Type(s) of Match: The matching requirement may be satisfied by any one or a combination of the following methods unless specific funding source restrictions apply:

   i. Cash Match: Cash will be obtained by Contractor and will be applied against allowable costs covered by the resulting contract.

   ii. Donation of Property: Title to or the use of property or equipment has been donated by a public agency for the program(s) covered by the resulting contract.

   iii. If title to property is donated, match value is the fair market value of the property. If the use of the property or equipment is donated, match value is the fair rental value as determined by applicable DHS policy. These values will be used as matching of the payments.

   iv. Third Party In-Kind Contributions: Property, goods, or services have been donated by a non-federal agency for the programs(s) covered by the resulting contract without charge to Contractor. 45 C.F.R. Part 74, Subpart G **shall** be used to establish the basis of valuation.

   v. Funds Transfer: Match funds will be submitted by a third party to DHS by check or money order under the terms of the resulting contract. Matching funds are to be received by DHS in an amount sufficient to match billing before Contractor will be reimbursed for services.

f. Contractor **shall** certify that any funds to be donated under the resulting contract which are derived or come directly or indirectly from Federal or State funds, or any other contractor under contract to DHS, have been specifically listed as a source above.

g. Contractor **shall** certify that the matching arrangements comply with requirements established in 45 C.F.R. Part 74, Subpart G (Cost Sharing or Matching) and all applicable DHS policies.

E. Contractor **shall** submit all billing invoices as required by the Contract and **shall not** withhold invoicing due to ongoing dispute(s) with DHS.

1. Any payments withheld by DHS due to unacceptable or insufficient performance **must not** be subject to late payment penalties, interest, or any other liability associated with late payment.

2. Any Corrective Action Plan (CAP) that is related to the dispute(s) will remain in place until all assessed penalties are received by DHS.

3. DHS may, at its sole discretion, release CAP(s) prior to receiving assessed penalties if it determines release to be in the State's best interest.

F. Contractor **shall** submit all final billing invoices within sixty (60) days of contract expiration.

1. Any billings for services rendered during a particular state fiscal year which are not submitted within ninety (90) days of the end of the fiscal year will not be paid.

2. Payments for completed services or deliverables satisfactorily delivered to and approved by DHS **shall** be at the price according to the resulting contract.

3. Payment for partially completed services or deliverables satisfactorily delivered to and not yet approved by DHS **shall** be at a price mutually agreed upon by Contractor and DHS.

G. Selected Contractor **must** be registered to receive payment and future *Bid Solicitation* notifications. Contractors **must** register on-line at vendor.ark.org.

H. Other sections of this *Bid Solicitation* may contain additional requirements for invoicing.

4.8 LIMITATION OF LIABILITY

A. DHS will demonstrate reasonable care but will not be liable in the event of loss, destruction, or theft of Contractor-owned equipment or software and technical and business or operations literature to be delivered or to be used in the installation of deliverables and services. Contractor **shall** retain total liability for equipment, software and technical and business or operations literature. DHS **shall not** at any time be responsible for or accept liability for any Contractor-owned items.

B. All limitations in the resulting contract are only to the extent such limitations do not impose an unlawful indemnification on the State.

C. Notwithstanding any other limitation provisions, Contractor **shall** be liable for any other direct loss or damage to the State caused by the gross negligence, intentional or willful misconduct, fraudulent act, recklessness, or other tortious conduct of Contractor or Contractor's employees or agents during its performance under the resulting Contract.

D. Notwithstanding any other limitation provisions, Contractor **shall** be liable for any direct loss to the State for bodily injury, death, or damage to property of the State caused by the negligence, intentional or willful misconduct, fraudulent act, recklessness, or other tortious conduct of Contractor or Contractor's employees or agents during its performance under the resulting contract.

E. Notwithstanding any other limitation provisions, Contractor **shall** be liable for any penalties, sanctions, and disallowances assessed against DHS by Federal authorities of noncompliance with Federal regulations and standards as a result of conduct of Contractor or Contractor's employees or agents during its performance under the resulting contract.

F. Contractor's liability for damages to DHS **shall** be limited to the value of the resulting contract or $5,000,000, whichever is greater.

1. The foregoing limitation of liability **shall not** apply to claims for:

a. Infringement of United States patent, copyright, trademarks, or trade secrets;

b. To claims for personal injury or damage to property caused by Contractor's gross negligence or willful misconduct;

c. To claims covered by other specific provisions of the resulting contract calling for damages;

d. To court costs or attorney's fees awarded by a court in addition to damages after litigation based on the resulting contract; or

e. Any penalties, sanctions, or disallowances assessed against the State by Federal authorities due to Contractor's or its subcontractors' noncompliance with Federal laws, regulations, or standards.

G. Contractor and DHS **shall not** be liable to each other, regardless of the form of action, for consequential, incidental, indirect, or special damages.

1. In the event that either party to the resulting contract deems it necessary to take legal action to enforce any provision of the contract and DHS prevails, Contractor **shall** pay all expenses of such action, including attorney's fees and costs at all stages of litigation as set by the court or hearing officer.

2. Legal action **shall** include administrative proceedings.

4.9 SURVIVAL OF RIGHTS AND OBLIGATIONS

The Parties' rights and obligations under the resulting contract **shall** survive and continue after the ending or expiration of the contract term, and **shall** bind the Parties and their legal representatives, successors, heirs, and assigns as allowed by state and federal laws and rules, unless otherwise approved by DHS.

4.10 PROPRIETARY INFORMATION

A. The release of public records is governed by the Arkansas Freedom of Information Act (FOIA) (Ark. Code Ann. § 25-19-101 et. seq.).

1. Submission documents pertaining to the Solicitation become the property of the State and may be subject to the FOIA. In accordance with FOIA, and to promote maximum competition in the State procurement process, the State may maintain the confidentiality of certain types of information described in FOIA. Such information may include trade secrets and other information exempted from public disclosure pursuant to FOIA.

2. Under no circumstances will pricing information submitted in response to an invitation for sealed bids be designated as confidential after the sealed bids have been opened.

3. Prospective Contractor may designate appropriate portions of its response as confidential, consistent with and to the extent permitted under FOIA and any other applicable law by submitting a redacted copy of the response. By redacting any information contained in the response, Prospective Contractor warrants that it has formed a good faith opinion having received such necessary or proper review by counsel and other knowledgeable advisors that the portions redacted are exempt from disclosure pursuant to Ark. Code Ann. § 25-19-105(b). The Arkansas FOIA has a presumption of openness. It is to be liberally interpreted, and exemptions are to be narrowly construed. For each redaction, Prospective Contractor **must** provide detailed justification as to how disclosure of the redacted information would give advantage to competitors. As custodian of the records, the State has the legal authority to review redactions to determine whether each are specifically and sufficiently justified to retain redaction prior to release. **Evidence demonstrating that the Prospective Contractor meets the minimum qualifications of this Bid Solicitation must be minimally redacted.**

4. If a Prospective Contractor deems part of the information contained in a response not to be a public record, Prospective Contractor should submit one (1) complete copy of the submission documents from which any proprietary or confidential information has been redacted in their bid response. Except for the redacted information, the redacted copy **must** be identical to the original copy, reflecting the same pagination as the original and showing the space from which information was redacted. Prospective Contractor is responsible for identifying all proprietary information and for ensuring the electronic copy is protected against restoration of redacted data.

5. The redacted copy will be open to public inspection under the FOIA without further notice to Prospective Contractor. The State will release any redacted information deemed to be subject to FOIA; the State will **not** contact Prospective Contractor prior to the release of documents.

6. If a redacted copy of the submission documents is not provided with Prospective Contractor's response, a copy of the non-redacted documents, with the exception of financial data (other than pricing), will be released in response to any request made under FOIA. The State has no liability to a Prospective Contractor with respect to the disclosure of Prospective Contractor's confidential or proprietary information ordered by a court of competent jurisdiction pursuant to FOIA or other applicable law.

7. Contractor **shall** cooperate with DHS requests for information and documents that DHS requires to fulfil a FOIA request.

8. Contractor **shall** timely and accurately provide all documents in its possession or control to DHS that match the request made by DHS.

9. Contractor **shall** timely and accurately respond to FOIA requests made directly to Contractor as required by applicable state law. Contractor **shall** notify DHS of any FOIA request it receives at DHS.FOIA@arkansas.gov.